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IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, **v.** **DIANA CANDELARIA, in her individual capacity; and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,** Defendants.	26-cv-08272-LJC **ANSWER BY DEFENDANTS DIANA CANDELARIA AND STEVE GORDON TO PLAINTIFF'S COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF** Action Filed: August 10, 2026

Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity (collectively referred to as "Defendants"), answer Plaintiff Brendan Ngwa Nforbi's COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF ("Complaint") (Document 1) filed on August 10, 2026, as set forth below.

INTRODUCTION

1. Paragraph 1 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 1 not expressly admitted here.

2. In answer to Paragraph 2 Defendants admit that " November 1, 2024, Plaintiff - a professional commercial truck driver -- was arrested by California Highway Patrol ("CHP") officers on the shoulder of Interstate 580 East in Livermore, Alameda County, California, on a suspicion of driving under the influence." The balance of Paragraph 2 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 2 not expressly admitted here.

3. In response to Paragraph 3 Defendants admit that "a hearing took place on January 24, 2025. via Microsoft Teams, before Defendant Candelaria; that on February 11, 2025, Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340 sustaining a one-year suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 22025,through Feb. 19. 2026), imposing a $125.00 reissue fee under Vehicle Code sections 14904 and 14906, and imposing a three-year SR-22 financial-responsibility requirement under Vehicle Code section 1630." The balance of Paragraph 3 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants

deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 3 not expressly admitted here.

4. Paragraph 4 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 4 not expressly admitted here.

5. Paragraph 5 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 5 not expressly admitted here.

6. Paragraph 6 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 6 not expressly admitted here.

7. Paragraph 7 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 7 not expressly admitted here.

8. Paragraph 8 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 8 not expressly admitted here.

9. Paragraph 9 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 9 not expressly admitted here.

JURISDICTION AND VENUE

10. In answer to paragraph 10, Defendants can neither admit nor deny the statements in this paragraph because they are conclusions of law and not statements of fact. Further, Defendants deny jurisdiction based on sovereign immunity and the affirmative defenses asserted herein. Defendants also deny that Plaintiffs stated a valid claim against them.

11. Paragraph 11 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 11 not expressly admitted here.

12. Paragraph 12 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 12 not expressly admitted here.

13. Paragraph 13 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 13 not expressly admitted here.

14. In answer to Paragraph 14 Defendants admit the events at issue took place in Alameda County.

PARTIES

15. In answer to paragraph 15 Defendants lack sufficient information and knowledge to form an opinion as to the truth of any factual allegations and, on that basis, deny them. The balance of Paragraph 15 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 15 not expressly admitted here.

16. In answer to Paragraph 16 Defendants admit that defendant Candelaria was the DMV hearing officer who conducted Plaintiff's hearing and issued the findings at issue here. The balance of Paragraph 16 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 16 not expressly admitted here.

17. In answer to Paragraph 17 Defendants admit that defendant Gordon was the director of the DMV at the time of the events at issue here. The balance of Paragraph 17 contains allegations to which no response is required because the allegations purport to be statements,

summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 17 not expressly admitted here.

18. Paragraph 18 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 18 not expressly admitted here.

19. Paragraph 19 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 19 not expressly admitted here.

20. Paragraph 20 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 20 not expressly admitted here.

FACTUAL ALLEGATIONS

21. Paragraph 21 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 21 not expressly admitted here.

22. Paragraph 22 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 22 not expressly admitted here.

23. Paragraph 23 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 23 not expressly admitted here.

24. Paragraph 24 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 24 not expressly admitted here.

25. Paragraph 25 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 25 not expressly admitted here.

26. Paragraph 26 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 26 not expressly admitted here.

27. Paragraph 27 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 27 not expressly admitted here.

28. Paragraph 28 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 28 not expressly admitted here.

29. Paragraph 29 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 29 not expressly admitted here.

30. Paragraph 30 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 30 not expressly admitted here.

31. Paragraph 31 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 31 not expressly admitted here.

32. Paragraph 32 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 32 not expressly admitted here.

33. Paragraph 33 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 33 not expressly admitted here.

34. Paragraph 34 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 34 not expressly admitted here.

35. Paragraph 35 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 35 not expressly admitted here.

36. Paragraph 36 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 36 not expressly admitted here.

37. Paragraph 37 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 37 not expressly admitted here.

38. Paragraph 38 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 38 not expressly admitted here.

39. Paragraph 39 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 39 not expressly admitted here.

40. Paragraph 40 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 40 not expressly admitted here.

41. Paragraph 41 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 41 not expressly admitted here.

42. Paragraph 42 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 42 not expressly admitted here.

43. Paragraph 43 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 43 not expressly admitted here.

44. Paragraph 44 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 44 not expressly admitted here.

45. Paragraph 45 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 45 not expressly admitted here.

46. Paragraph 46 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 46 not expressly admitted here.

47. Paragraph 47 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 47 not expressly admitted here.

48. Paragraph 48 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 48 not expressly admitted here.

49. Paragraph 49 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 49 not expressly admitted here.

50. Paragraph 50 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 50 not expressly admitted here.

51. Paragraph 51 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 51 not expressly admitted here.

52. Defendants admit to the facts alleged in Paragraph 52.

53. Paragraph 53 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 53 not expressly admitted here.

54. Paragraph 54 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 54 not expressly admitted here.

55. Paragraph 55 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 55 not expressly admitted here.

56. Paragraph 56 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 56 not expressly admitted here.

57. Paragraph 57 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 57 not expressly admitted here.

58. Paragraph 58 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 58 not expressly admitted here.

59. Paragraph 59 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 59 not expressly admitted here.

60. Paragraph 60 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 60 not expressly admitted here.

61. Paragraph 61 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 61 not expressly admitted here.

62. Paragraph 62 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 62 not expressly admitted here.

63. Paragraph 63 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 63 not expressly admitted here.

64. Paragraph 64 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 64 not expressly admitted here.

65. Paragraph 65 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 65 not expressly admitted here.

66. Paragraph 66 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 66 not expressly admitted here.

67. Paragraph 67 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 67 not expressly admitted here.

68. Paragraph 68 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 68 not expressly admitted here.

69. Paragraph 69 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 69 not expressly admitted here.

70. Paragraph 70 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 70 not expressly admitted here.

71. Paragraph 71 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 71 not expressly admitted here.

72. Paragraph 72 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 72 not expressly admitted here.

73. Paragraph 73 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 73 not expressly admitted here.

74. Paragraph 74 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 74 not expressly admitted here.

75. Paragraph 75 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 75 not expressly admitted here.

76. Paragraph 76 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 76 not expressly admitted here.

77. Paragraph 77 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 77 not expressly admitted here.

78. Paragraph 78 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 78 not expressly admitted here.

79. Paragraph 79 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 79 not expressly admitted here.

80. Paragraph 80 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 80 not expressly admitted here.

81. Paragraph 81 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 81 not expressly admitted here.

82. Paragraph 82 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 82 not expressly admitted here.

83. Paragraph 83 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 83 not expressly admitted here.

84. Paragraph 84 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 84 not expressly admitted here.

85. Paragraph 85 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 85 not expressly admitted here.

86. Paragraph 86 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 86 not expressly admitted here.

87. Paragraph 87 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 87 not expressly admitted here.

88. Paragraph 88 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 88 not expressly admitted here.

89. Paragraph 89 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 89 not expressly admitted here.

90. Paragraph 90 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 90 not expressly admitted here.

91. Paragraph 91 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 91 not expressly admitted here.

COUNT I

92. Paragraph 92 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 92 not expressly admitted here.

93. Paragraph 93 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 93 not expressly admitted here.

94. Paragraph 94 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 94 not expressly admitted here.

95. Paragraph 95 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 95 not expressly admitted here.

96. Paragraph 96 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the

extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 96 not expressly admitted here.

97. Paragraph 97 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 97 not expressly admitted here.

98. Paragraph 98 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 98 not expressly admitted here.

99. Paragraph 99 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 99 not expressly admitted here.

COUNT II

100. Paragraph 100 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 100 not expressly admitted here.

101. Paragraph 101 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 101 not expressly admitted here.

102. Paragraph 102 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 102 not expressly admitted here.

103. Paragraph 103 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 103 not expressly admitted here.

104. Paragraph 104 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 104 not expressly admitted here.

105. Paragraph 105 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 105 not expressly admitted here.

COUNT III

106. Paragraph 106 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 106 not expressly admitted here.

107. Paragraph 107 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 107 not expressly admitted here.

108. Paragraph 108 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 108 not expressly admitted here.

109. Paragraph 109 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 109 not expressly admitted here.

110. Paragraph 110 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 110 not expressly admitted here.

111. Paragraph 111 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 111 not expressly admitted here.

COUNT IV

112. Paragraph 112 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 112 not expressly admitted here.

113. Paragraph 113 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 113 not expressly admitted here.

114. Paragraph 114 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the

extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 114 not expressly admitted here.

115. Paragraph 115 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 115 not expressly admitted here.

116. Paragraph 116 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 116 not expressly admitted here.

117. Paragraph 117 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 117 not expressly admitted here.

COUNT V

118. Paragraph 118 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 118 not expressly admitted here.

119. Paragraph 119 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 119 not expressly admitted here.

120. Paragraph 120 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 120 not expressly admitted here.

121. Paragraph 121 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 121 not expressly admitted here.

122. Paragraph 122 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 122 not expressly admitted here.

123. Paragraph 123 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the

basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 123 not expressly admitted here.

QUASI-JUDICIAL ABSOLUTE IMMUNITY IS UNAVAILABLE

124. Paragraph 124 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 124 not expressly admitted here.

125. Paragraph 125 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 125 not expressly admitted here.

126. Paragraph 126 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 126 not expressly admitted here.

127. Paragraph 127 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 127 not expressly admitted here.

128. Paragraph 128 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 128 not expressly admitted here.

129. Paragraph 129 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 129 not expressly admitted here.

130. Paragraph 130 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 130 not expressly admitted here.

131. Paragraph 131 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 131 not expressly admitted here.

THE ELEVENTH AMENDMENT DOES NOT BAR THE EX PARTE YOUNG CLAIMS AGAINST DEFENDANT

132. Paragraph 132 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 132 not expressly admitted here.

133. Paragraph 133 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 133 not expressly admitted here.

134. Paragraph 134 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 134 not expressly admitted here.

135. Paragraph 135 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 135 not expressly admitted here.

136. Paragraph 136 contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of

Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph 136 not expressly admitted here.

PRAYER RELIEF

In the remaining allegations in the Complaint, Plaintiff sets forth his prayers for relief to which no response is required. To the extent that a response is required, Defendants deny these allegations. Specifically, Defendants deny that any of the request relief would redress the harm about which Plaintiff complains.

AFFIRMATIVE DEFENSES

Plaintiff's claims, separately and conjunctively, are barred against Defendants based on lack of standing.

2. Plaintiff's claims, separately and conjunctively, are barred against Defendants based on lack of subject matter jurisdiction.

3. Plaintiff's claims, separately and conjunctively, are barred against Defendants based on the failure to state sufficient facts to sustain a cause of action.

4. Plaintiff's claims, separately and conjunctively, are barred against Defendants based on Plaintiff's failure to state a claim upon which relief can be granted.

5. Plaintiff's claims, separately and conjunctively, are barred against Defendants based on the doctrine of laches.

6. Plaintiff's claims, separately and conjunctively, are barred against Defendants based on the doctrine of unclean hands.

7. Plaintiff's claims, separately and conjunctively, are barred against Defendants because Plaintiff's claims are not ripe and do not present an actual, present, and justiciable controversy.

8. Venue does not lie in this Court.

9. Plaintiff's claims, separately and conjunctively, are barred against Defendants because Plaintiff failed to exhaust appropriate administrative remedies under California's Government Claims Act and xxx

10. Plaintiff's claims, separately and conjunctively, are barred against Defendants to the extent that Plaintiff seeks to enlarge upon the alleged acts and omissions stated in the administrative claims filed with the California Government Claims Program in the Department of General Services. xxx

11. Plaintiff's claims, separately and conjunctively, are barred by the Eleventh Amendment to the United States Constitution. Seminole Tribe of Florida v. Florida, 517 U.S. 44, 54 (1996); Pennhurst State Sch. & Hosp. v. Halderman, 465 U.S. 89, 101-102 (1984).

12. Plaintiff's claims, separately and conjunctively, are barred because Plaintiff has no cause of action directly under the United States Constitution.

13. Plaintiff's claims, separately and conjunctively, are barred because the state, state agencies, and state officials sued in their official capacities for damages are not "persons" within the meaning of § 1983. Will v. Michigan Dept. of State Police, 491 U.S. 58, 64-66 (1989); Mackey v. Board of Trustees of Calif. State Univ., 31 Cal.App.5th 640, 654 (2019).

14. Plaintiff's claims, separately and conjunctively, are barred by Defendants' immunity from liability under the law, including but not limited to, California Government Code sections 815, 815.2(b), 815.3, 818, 818.2, 818.8, 820, 820.2, 820.4, 820.6, 820.8, 821, 821.6, 822.2, and 950.2, the principles set forth by Yee v. Superior Court (2019) 31, Cal.App.5th 26, 40, California Civil Code section 47, and by common law immunities and privileges.

15. Plaintiff's claims, separately and conjunctively, are barred because at all relevant times Defendants' actions were taken in good faith and were a lawful and legitimate exercise of official discretion and managerial discretion based on a rational, reasonable consideration of facts, with due care and without malice, under applicable policies, procedures, regulations, and laws, and were motived by legitimate, nondiscriminatory reasons.

16. Plaintiff's claims, separately and conjunctively, are barred by the applicable statute of limitations, including but not limited to, 42 U.S.C. § 2000e-5(f)(1), and sections 335.1 and 342 of the California Code of Civil Procedure. xx

17. Plaintiff's claims, separately and conjunctively, are barred under the doctrine of after-acquired evidence.

18. Plaintiff's claims, separately and conjunctively, are barred because Defendants' actions were required by law.

19. Plaintiff's claims for damages, separately and conjunctively, are barred to the extent that he failed to mitigate his damages, if any, and/or because his damages are speculative.

20. If Plaintiff is entitled to any recovery, such recovery must be reduced under the doctrine of comparative fault.

21. Plaintiff's claims for damages, separately and conjunctively, are barred by the doctrines of estoppel and waiver.

22. Plaintiff's claims, separately and conjunctively, are barred by the doctrine of judicial estoppel.

23. To the extent Plaintiff has previously raised any of the claims contained in the Complaint in a judicial or quasi-judicial forum, and such issues were adjudicated, these claims are now barred by res judicata and/or collateral estoppel because Plaintiff failed to exhaust available judicial remedies.

24. Plaintiff's claims, separately and conjunctively, are barred because Plaintiff, by his conduct, omissions, and statements, consented to the conduct alleged in the Complaint.

25. Plaintiff's claims for damages, separately and conjunctively, are barred because his damages were not caused by any acts or omissions of Defendants or their employees or agents, but rather by Plaintiff's breach of his duty as a license holder.

26. If any wrongful activity occurred, or if Plaintiff suffered any injury or damages, it was caused by other parties or persons over whom Defendants have no control.

27. Plaintiff's claims, separately and conjunctively, are barred against Defendant because Plaintiff has failed to join necessary and indispensable parties.

28. Plaintiff's claims for damages, separately and conjunctively, are barred because alleged violations of the California Constitution do not support claims for monetary damages in the absence of a statutory provision or an established common law tort authorizing damages. Katzberg v. Regents of Univ. of Calif., 29 Cal.4th 300, 307, 317 (2002).

29. The Complaint, and each cause of action alleged therein, for equitable relief is barred because Plaintiff has an adequate remedy at law and there is no danger of irreparable harm.

30. The Complaint, and each cause of action alleged therein, for equitable relief is barred by the doctrine of impossibility.

31. Defendants are entitled to immunity as quasi-judicial officers who engaged in quasi-judicial conduct. Butz v. Economou (1978) 438 U.S. 478.

32. Defendants are entitled to qualified immunity because Defendants did not violate any clearly established constitutional or statutory rights that a reasonable person was likely to have known.

33. Defendants reserve the right to amend this answer to assert additional defenses and/or supplement, alter, and/or change this answer as may be warranted by the revelation of information during discovery and investigation.

JURY DEMAND

Defendants hereby demand trial by jury.

DEFENDANTS' PRAYER FOR RELIEF

Accordingly, Defendants pray that:

1. No injunctive or declaratory relief be issued;

2. Plaintiff takes nothing by his Complaint;

3. Judgment be entered in favor of Defendants and against Plaintiff;

4. Plaintiff not be awarded costs of suit and/or attorney fees;

5. Plaintiff not be awarded any statutory fees;

6. Defendants be awarded costs of suit and their attorneys' fees incurred herein; and/or

7. Defendants be awarded such other and further relief as may be just and proper.

Dated: September 4, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California

/s/ William J. McMahon

WILLIAM J. MCMAHON
Deputy Attorney General
Attorneys for Defendants Candelaria and Gordon

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CERTIFICATE OF SERVICE

Case Name: ***BRENDAN NFORBI v. DMV*** No. **26-cv-08272-LJC**

I hereby certify that on September 4, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

ANSWER BY DEFENDANTS DIANA CANDELARIA AND STEVE GORDON TO PLAINTIFF'S COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF

I certify that **all** participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on September 4, 2026, at Oakland, California.

Shontane Adams
Declarant

Shontane Adams
Signature

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